

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 647

BY BUSINESS COMMITTEE

AN ACT

RELATING TO MANUFACTURED HOMES; AMENDING SECTION 39-4105, IDAHO CODE, TO REVISE A DEFINITION AND TO MAKE TECHNICAL CORRECTIONS; AMENDING CHAPTER 6, TITLE 55, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 55-619, IDAHO CODE, TO PROHIBIT CERTAIN RESTRICTIVE COVENANTS AGAINST MANUFACTURED HOMES; AMENDING SECTION 67-6509A, IDAHO CODE, TO REVISE PROVISIONS REGARDING SITING OF MANUFACTURED HOMES IN RESIDENTIAL AREAS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 39-4105, Idaho Code, be, and the same is hereby amended to read as follows:

39-4105. DEFINITIONS. As used in this chapter, the terms defined in this section shall have the following meanings, unless the context clearly indicates another meaning. Where terms are not defined in this chapter and are defined in the currently adopted ~~International Building Code~~ international building code published by the ~~International Code Council~~ international code council, such terms shall have the meanings ascribed to them in that code:

(1) "Administrator" means the administrator of the division of occupational and professional licenses for the state of Idaho.

(2) "Board" means the Idaho building code board, herein created.

(3) "Building inspector" means a person who inspects buildings or structures for compliance with the provisions of this chapter.

(4) "Construction" means the erection, fabrication, reconstruction, demolition, alteration, conversion, or repair of a building or the installation of equipment therein normally a part of the structure.

(5) "Division" means the state of Idaho division of occupational and professional licenses.

(6) "~~International Fire Code~~ fire code" means the ~~International Fire Code~~ international fire code as published by the ~~International Code Council~~ international code council.

(7) "Local government" means any city or county of this state.

(8) "Manufactured home" means a structure, constructed after June 15, 1976, in accordance with the HUD manufactured home construction and safety standards, and is transportable in one (1) or more sections, ~~which that~~, in the traveling mode, is eight (8) body feet or more in width or is forty (40) body feet or more in length, or when erected on site, is three hundred twenty (320) or more square feet, and ~~which that~~ is built on a permanent chassis and designed to be used as a dwelling with or without a permanent foundation when connected to the required utilities, and includes the plumbing, heating, air conditioning, and electrical systems contained therein, except that such term shall include any structure ~~which that~~ meets all the re-

quirements of this subsection except the size requirements and with respect to which the manufacturer voluntarily files a certification required by the secretary of housing and urban development and complies with the standards established under 42 U.S.C. 5401 et seq. Manufactured homes include multi-family manufactured homes that are constructed in accordance with the HUD manufactured home construction and safety standards.

(9) "Mobile home" means a factory-assembled structure or structures generally constructed prior to June 15, 1976, and equipped with the necessary service connections and made so as to be readily movable as a unit or units on their own running gear and designed to be used as a dwelling unit or units with or without a permanent foundation.

(10) "Telecommunications facilities" means all wires, cables, equipment, apparatus or other installations necessary to furnish service, by which there is accomplished or may be accomplished the sending or receiving of information, data, message writing signs, signals, pictures, and sounds of all kinds, by aid of such wires, cables, equipment, apparatus or other installations, but shall not include the habitable structure in which such telecommunications facilities are housed.

SECTION 2. That Chapter 6, Title 55, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 55-619, Idaho Code, and to read as follows:

55-619. MANUFACTURED HOMES -- RESTRICTIVE COVENANTS PROHIBITED. (1) On and after July 1, 2026, no restrictive covenant shall be entered into that prohibits or unreasonably restricts siting of manufactured homes, as defined in section 39-4105, Idaho Code, on lots where single-family dwellings are permitted. Any such covenant is hereby declared to be against public policy and is void and unenforceable. Any person attempting to create or enforce such a covenant shall be liable for any attorney's fees, court costs, and any other damages incurred by the other party.

(2) This section shall not apply to restrictive covenants against manufactured homes on lots where single-family dwellings are permitted that are entered into prior to July 1, 2026.

SECTION 3. That Section 67-6509A, Idaho Code, be, and the same is hereby amended to read as follows:

67-6509A. SITING OF MANUFACTURED HOMES IN RESIDENTIAL AREAS -- PLAN TO BE AMENDED. (1) By resolution or ordinance adopted, amended, or repealed in accordance with the notice and hearing procedures provided under section 67-6509, Idaho Code, each governing board shall amend its comprehensive plan and land use regulations for all land zoned for single-family residential uses, except for lands falling within an area defined as a historic district under section 67-4607, Idaho Code, to allow for siting of manufactured homes as defined in section 39-4105, Idaho Code.

(2) Manufactured homes on individual lots zoned for single-family residential uses as provided in subsection (1) of this section shall be in addition to manufactured homes on lots within designated mobile home parks or manufactured home subdivisions.

1 (3) This section shall not be construed as abrogating a recorded re-
2 strictive covenant.

3 (4) A governing board may adopt any or all of the following placement
4 standards, or any less restrictive standards, for the approval of manufac-
5 tured homes located outside mobile home parks:

6 (a) The manufactured home ~~shall be~~ may be either a single section or
7 multisectional and shall enclose a space of ~~not less than one thousand~~
8 ~~(1,000) square feet~~ at least four hundred (400) square feet for a single
9 section or eight hundred (800) square feet for a multisectional manu-
10 factured home;

11 (b) The manufactured home shall be placed on an excavated and back-
12 filled foundation and enclosed at the perimeter such that the home is
13 located not more than twelve (12) inches above grade, except when placed
14 on a basement foundation;

15 (c) The manufactured home shall have a pitched roof, except that no
16 standards shall require a slope of greater than a nominal three (3) feet
17 in height for each twelve (12) feet in width;

18 (d) The manufactured home shall have exterior siding and roofing which
19 in color, material, and appearance is similar to the exterior siding and
20 roofing material commonly used on residential dwellings within the com-
21 munity or which is comparable to the predominant materials used on sur-
22 rounding dwellings as determined by the local permit approval author-
23 ity;

24 (e) The manufactured home shall have a garage or carport constructed of
25 like materials if zoning ordinances would require a newly constructed
26 nonmanufactured home to have a garage or carport;

27 (f) In addition to the provisions of paragraphs (a) through (e) of this
28 subsection, a city or county may subject a manufactured home and the lot
29 ~~upon~~ on which it is sited to any development standard, architectural re-
30 quirement, and minimum size requirements to which a conventional sin-
31 gle-family residential dwelling on the same lot would be subjected.

32 (5) Any approval standards, special conditions and the procedures for
33 approval adopted by a local government shall be clear and objective and shall
34 not have the effect, either in themselves or cumulatively, of discouraging
35 needed housing through unreasonable cost or delay.

36 SECTION 4. An emergency existing therefor, which emergency is hereby
37 declared to exist, this act shall be in full force and effect on and after
38 July 1, 2026.